



CHAPTER 31.

An Act to make provision with regard to the tenure of office and superannuation of members of the Scottish Land Court. [2nd June 1938.]

A.D. 1938.
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BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Every member of the Scottish Land Court (other than the Chairman) appointed after the passing of this Act shall vacate his office on attaining the age of sixty-five years, and every member (other than the Chairman) holding office at the passing of this Act, (hereinafter referred to as an existing member) shall vacate his office on attaining the age of sixty-five years, or on the passing of this Act, if he has attained that age prior thereto.

Tenure of office and superannuation of members of Scottish Land Court.

(2) The Superannuation Acts, 1834 to 1935, shall apply to every member of the Scottish Land Court (other than the Chairman) appointed after the passing of this Act in like manner as those Acts apply to persons in the permanent civil service of the State.

(3) Any existing member of the Scottish Land Court who vacates his office in pursuance of subsection (1) of this section shall be entitled to a retiring allowance at the rate of five hundred pounds per annum paid out of moneys provided by Parliament :

A.D. 1938.
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Provided that, if any existing member who has not attained the age of sixty-five years at the passing of this Act gives, within three months thereafter, written notice to the Secretary of State that he desires that the Superannuation Acts, 1834 to 1935, shall apply to him, the said Acts shall, in lieu of the foregoing provisions of this subsection, apply to him in like manner as if subsection (2) of this section had been enacted prior to his appointment.

Citation.

2. This Act may be cited as the Scottish Land Court Act, 1938.

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